

**SENATE SUBSTITUTE FOR
HOUSE BILL NO. 4557**

A bill to amend 1979 PA 94, entitled
"The state school aid act of 1979,"
by amending sections 22p and 104c (MCL 388.1622p and 388.1704c),
section 22p as amended by 2025 PA 15 and section 104c as amended by
2021 PA 48; and to repeal acts and parts of acts.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 22p. (1) Subject to subsection (2), to receive funding
2 under section 22b, a district or public school academy that is
3 assigned by the superintendent of public instruction as a
4 partnership district must have a signed 3-year partnership district
5 agreement with the department that includes all of the following:

6 (a) Measurable benchmarks that the district or public school
7 academy will achieve for each school operated by the district or



public school academy that is subject to the partnership district agreement after 18 months and after 36 months from the date the agreement was originally signed. Measurable benchmarks under this subdivision must include all of the following:

(i) Pupils on track to meet or exceed grade level proficiency, with consideration for district or public school academy needs identified as required under section 21h.

(ii) Either of the following, as applicable:

(A) At least 1 proficiency or growth benchmark based on state assessments described in section ~~104b~~ or 104c.

(B) At least 1 proficiency or growth benchmark based on a benchmark assessment described in section 104h.

(iii) Improved high school graduation rates, as applicable.

(iv) Attendance rates.

(b) Accountability measures to be imposed if the district or public school academy does not achieve the measurable benchmarks described in subdivision (a) or section 21h(2)(b) for each school operated by the district or public school academy that is subject to the partnership district agreement. For a district assigned as a partnership district as described in this subsection, accountability measures under this subdivision must include the reconstitution of the school. For a public school academy assigned as a partnership district as described in this subsection, accountability measures under this subdivision may include the reconstitution of the school.

(c) For a public school academy assigned as a partnership district as described in this subsection, a requirement that, if reconstitution is imposed on a school that is operated by the public school academy and that is subject to the partnership



1 district agreement, the school must be reconstituted as described
2 in section 507, 528, or 561, as applicable, of the revised school
3 code, MCL 380.507, 380.528, and 380.561.

4 (d) For a district assigned as a partnership district as
5 described in this subsection, a provision that, if reconstitution
6 is imposed on a school that is operated by the district and that is
7 subject to the partnership district agreement, reconstitution may
8 require closure of the school building, but, if the school building
9 remains open, reconstitution must include, but is not limited to,
10 all of the following:

11 (i) The district shall make significant changes to the
12 instructional and noninstructional programming of the school based
13 on the needs identified through a comprehensive review of data in
14 compliance with section 21h.

15 (ii) The district shall review whether the current principal of
16 the school should remain as principal or be replaced.

17 (iii) The reconstitution plan for the school must require the
18 adoption of goals similar to the measurable benchmarks included in
19 the partnership district agreement, with a limit of 3 years to
20 achieve the goals. If the goals are not achieved within 3 years,
21 the superintendent of public instruction shall impose a second
22 reconstitution plan.

23 (2) If a district or public school academy is assigned as a
24 partnership district as described in subsection (1) during the
25 current fiscal year, it shall ensure that it has a signed
26 partnership district agreement as described in subsection (1) in
27 place by not later than 90 days after the date that it is assigned
28 as a partnership district. If a district or public school academy
29 described in this subsection does not comply with this subsection,



1 the department shall withhold funding under section 22b for that
2 district or public school academy until the district or public
3 school academy has a signed partnership district agreement as
4 described in subsection (1) in place.

5 Sec. 104c. (1) In order to receive state aid under this
6 article, a district shall administer the state assessments
7 described in this section.

8 (2) For the purposes of this section, the department shall
9 develop and administer the Michigan student test of educational
10 progress (M-STEP) assessments in English language arts and
11 mathematics. These assessments shall be aligned to state standards.

12 (3) For the purposes of this section, the department shall
13 implement a summative assessment system that is proven to be valid
14 and reliable for administration to pupils as provided under this
15 subsection. The summative assessment system must meet all of the
16 following requirements:

17 (a) The summative assessment system must measure student
18 proficiency on the current state standards, must measure student
19 growth for consecutive grade levels in which students are assessed
20 in the same subject area in both grade levels, and must be capable
21 of measuring individual student performance.

22 (b) The summative assessments for English language arts and
23 mathematics must be administered to all public school pupils in
24 grades 3 to 11, including those pupils as required by the ~~federal~~
25 individuals with disabilities education act, Public Law 108-446,
26 and by title I of the ~~federal~~-every student succeeds act, ~~(ESSA)~~,
27 Public Law 114-95.

28 (c) The summative assessments for science must be administered
29 to all public school pupils in at least grades 5 and 8, including



1 those pupils as required by the ~~federal~~ individuals with
2 disabilities education act, Public Law 108-446, and by title I of
3 the ~~federal~~ every student succeeds act, ~~(ESSA)~~, Public Law 114-95.

4 (d) The summative assessments for social studies must be
5 administered to all public school pupils in at least grades 5 and
6 8, including those pupils as required by the ~~federal~~ individuals
7 with disabilities education act, Public Law 108-446, and by title I
8 of the ~~federal~~ every student succeeds act, ~~(ESSA)~~, Public Law 114-
9 95.

10 (e) The content of the summative assessments must be aligned
11 to state standards.

12 (f) The pool of questions for the summative assessments must
13 be subject to a transparent review process for quality, bias, and
14 sensitive issues involving educator review and comment. The
15 department shall post samples from tests or retired tests featuring
16 questions from this pool for review by the public.

17 (g) The summative assessment system must ensure that students,
18 parents, and teachers are provided with reports that convey
19 individual student proficiency and growth on the assessment and
20 that convey individual student domain-level performance in each
21 subject area, including representative questions, and individual
22 student performance in meeting state standards.

23 (h) The summative assessment system must be capable of
24 providing, and the department shall ensure that students, parents,
25 teachers, administrators, and community members are provided with,
26 reports that convey aggregate student proficiency and growth data
27 by teacher, grade, school, and district.

28 (i) The summative assessment system must ensure the capability
29 of reporting the available data to support educator evaluations.



1 (j) The summative assessment system must ensure that the
2 reports provided to districts containing individual student data
3 are available within 60 days after completion of the assessments.

4 (k) The summative assessment system must ensure that access to
5 individually identifiable student data meets all of the following:

6 (i) Is in compliance with 20 USC 1232g, commonly referred to as
7 the family educational rights and privacy act of 1974.

8 (ii) Except as may be provided for in an agreement with a
9 vendor to provide assessment services, as necessary to support
10 educator evaluations pursuant to subdivision (i), or for research
11 or program evaluation purposes, is available only to the student;
12 to the student's parent or legal guardian; and to a school
13 administrator or teacher, to the extent that he or she has a
14 legitimate educational interest.

15 (l) The summative assessment system must ensure that the
16 assessments are pilot tested before statewide implementation.

17 (m) The summative assessment system must ensure that
18 assessments are designed so that the maximum total combined length
19 of time that schools are required to set aside for a pupil to
20 answer all test questions on all assessments that are part of the
21 system for the pupil's grade level does not exceed that maximum
22 total combined length of time for the previous statewide assessment
23 system or 9 hours, whichever is less. This subdivision does not
24 limit the amount of time a district may allow a pupil to complete a
25 test.

26 (n) The total cost of executing the summative assessment
27 system statewide each year, including, but not limited to, the cost
28 of contracts for administration, scoring, and reporting, must not
29 exceed an amount equal to 2 times the cost of executing the



1 previous statewide assessment after adjustment for inflation.

2 (o) The summative assessment system must not require more than
3 3 hours in duration, on average, for an individual pupil to
4 complete the combined administration of the math and English
5 language arts portions of the assessment for any 1 grade level.

6 (p) The summative assessments for English language arts and
7 mathematics for pupils in grades 8 to 10 must be aligned to the
8 college entrance test portion of the Michigan merit examination
9 required under section ~~104b-1279g~~ **of the revised school code, MCL**
10 **380.1279g.**

11 (4) The department shall offer benchmark assessments in the
12 fall and spring of each school year to measure English language
13 arts and mathematics in each of grades K to 2. Full implementation
14 must occur not later than the 2019-2020 school year. These
15 assessments are necessary to determine a pupil's proficiency level
16 before grade 3.

17 (5) This section does not prohibit districts from adopting
18 interim assessments.

19 (6) As used in this section, "English language arts" means
20 that term as defined in section ~~104b-1279g~~ **of the revised school**
21 **code, MCL 380.1279g.**

22 Enacting section 1. Section 104b of the state school aid act
23 of 1979, 1979 PA 94, MCL 388.1704b, is repealed.

24 Enacting section 2. This amendatory act takes effect June 30,
25 2026.

